

WRITTEN SUBMISSIONS · 15 JAN 1998

Written submissions in summary proceedings

TYPE	DATE	PARTIES
Pleadings / procedural document	15 Jan 1998	McDonald's France v. Bernard Collorafi

SUMMARY SHEET

Summary proceedings written submissions — SEBOL, B et O, LES PINS · 15 January 1998

Overview: written submissions filed on behalf of SEBOL, B et O and the EURL LES PINS, represented by Bernard Collorafi, before the President of the Paris Commercial Court, at the summary proceedings (référé) hearing of 15 January 1998, against McDonald's France.

Key points

McDonald's, by three writs of summons served on 9 January 1998, sought the cessation of operation and the eviction of the three companies, the handing over of the keys, the employment contracts and the accounts, subject to a periodic penalty, the appointment of an agent to draw up the inventory and an award under article 700 of the NCPC. The parties filing the submissions respond that the companies had themselves summoned McDonald's on the merits by a reasoned writ of 26 June 1997, seeking compensation (30 million francs for SEBOL, 5 million for B et O, 10,350,000 francs for Collorafi). They recall the career of Collorafi, the eighteenth franchisee of the network, who signed a lease-management agreement (location-gérance) in August 1987. They invoke a serious dispute, the defence of non-performance and the lack of jurisdiction of the summary proceedings judge (article 873 of the NCPC).

Significance

This document sets out the defence of the Collorafi companies against the application for eviction in summary proceedings; it would lead to the orders finding no grounds for summary proceedings.

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Source: bernardcollorafi.org/en/documents/summary-proceedings-submissions-collorafi-paris-commercial-court-eviction-1998/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.